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PASCO COUNTY, FLORIDA

Growth Management/Zoning Department
West Pasco Government Center
7530 Little Road, Suite 320
New Port Richey, FL 34654
Tel. (813) 847-8132
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Mail Certified No. P 846 084 075

Date February 19, 1998

To Marina Pennington
Florida Department of Community Affairs
2555 Shummard Oak Boulevard
Tallahassee, FL 32399-2100

RE: Meadow Pointe Development of Regional Impact, Notice of Proposed Change

Dear Ms. Pennington:

Pursuant to 9J-2.025 (4), (5), F.A.C., a certified copy of the approved Resolution No. 98-91, is being sent to Department of Community Affairs, Tampa Bay Regional Council, the developer and the developer's representative.

On February 10, 1998, the Pasco County Board of County Commissioners approved a request to amend the Meadow Pointe DRI Development Order. The Amendment eliminates County Line Road east of the North South road, revises Map H1 to eliminate said road and to extend a subdivision road, and determines that the request does not constitute a substantial deviation.

If you have any questions, please do not hesitate to contact me.

Sincerely,

Cynthia A. Patterson, AICP
Planner II

CAP/cap

cc: Mr. Tim Butts, Tampa Bay Regional Council,
Mail #P 846 084 069.
Mr. Don Buck, Trout Creek Development Corporation,
Mail # P 864 084 050
Mr. Ted Links, Lincks & Associates,
Mail # P 846 084 076

EXHIBIT B

BY COMMISSIONER_____ RESOLUTION NO. 98-91

MEADOW POINTE DEVELOPMENT ORDER AMENDMENT
DEVELOPMENT OF REGIONAL IMPACT
SUBSTANTIAL DEVIATION DETERMINATION

RESOLUTION AMENDING RESOLUTION NO. 90-32, AS AMENDED, TO APPROVE REVISIONS TO THE DEVELOPMENT ORDER FOR THE MEADOW POINTE (f/k/a TROUT CREEK) DEVELOPMENT OF REGIONAL IMPACT AND DETERMINING THAT THE PROPOSED CHANGE DOES NOT CONSTITUTE A SUBSTANTIAL DEVIATION TO THE APPROVED DEVELOPMENT ORDER.

WHEREAS, on October 9, 1973, the Board of County Commissioners of Pasco County adopted by resolution a Development of Regional Impact Development Order approving, with conditions, the Deerfield Village Development of Regional Impact.

WHEREAS, the Development Order was amended by the Board of County Commissioners by Resolution No. 89-10, dated October 11, 1988; Resolution No. 89-29, dated November 15, 1988; Resolution No. 89-69, dated January 4, 1989, rescinding Resolution Nos. 89-10 and 89-29; Resolution No. 90-32, a Substantial Deviation Development Order approved on November 21, 1989; Resolution No. 92-50, dated November 12, 1991; and Resolution No. 97-98, dated December 10, 1996.

WHEREAS, on October 13, 1997, Trout Creek Development Corporation filed a Notification Requesting a Change to an Approved Development Order, pursuant to Section 380.06(19), Florida Statutes.

STATE OF FLORIDA
COUNTY OF PASCO
THIS IS TO CERTIFY THAT THE FOREGOING IS A TRUE AND CORRECT COPY OF THE ORIGINAL OF RECORD IN MY OFFICE. WITNESS MY HAND THE COUNTY'S OFFICIAL SEAL THIS 17th day of Feb. 1998
JED PITTMAN, CLERK TO THE BOARD
BY Elaine H. Mitchell D.C.

NOW, THEREFORE, BE IT RESOLVED by the Board of County Commissioners of Pasco County in regular session duly assembled this 10th day of February, 1998, that:

A. The Board of County Commissioners of Pasco County makes the following FINDINGS OF FACT:

1. Resolution No. 90-32 contained Map H1 showing County Line Road extending to the east boundary of Meadow Pointe.

2. Trout Creek Development Corporation has modified Map H1 to eliminate County Line Road east of the North South road and has filed a Notification of Proposed Change to a Previously Approved Development of Regional Impact Order on Florida Department of Community Affairs Form BRM-08-86 (the "NOPC").

3. The Developer has submitted the NOPC simultaneously to Pasco County Growth Management, the Tampa Bay Regional Planning Council, and the Florida Department of Community Affairs.

4. The Pasco County Board of County Commissioners is the local governing body having jurisdiction over the review and approval of said Development of Regional Impact in accordance with Section 380.06, Florida Statutes.

5. The Board of County Commissioners of Pasco County has given 15 days notice and held a public hearing on February 10, 1998.

6. At the public hearing, all parties were afforded the opportunity to

present evidence and argument on all issues and submit rebuttal evidence.

7. Additionally, at said public hearing, any member of the general public requesting to do so was given the opportunity to present written or oral communications.

8. The Board of County Commissioners has received and considered the evidence submitted by the Applicant, the recommendations of the Pasco County Growth Management and the Development Review Committee, and the comments by Tampa Bay Regional Planning Council and Department of Community Affairs staffs.

B. The Board of County Commissioners of Pasco County makes the following CONCLUSIONS OF LAW:

1. Based on the clear and convincing evidence submitted to and considered by the Board of County Commissioners, the amendments approved hereby do not constitute a substantial deviation and therefore do not require further Development of Regional Impact Review pursuant to Subsection 380.06(19), Florida Statutes.

2. The Meadow Pointe Development of Regional Impact, as amended hereby, will not unreasonably interfere with the achievement of the objectives of the State Land Development Plan.

3. The amendments approved by this Resolution are in accordance with the requirements of Section 380.06, Florida Statutes, and are consistent with the Pasco County Comprehensive Plan adopted pursuant to Section 163, Florida Statutes.

4. The impacts of the proposed development are adequately addressed by the conditions of this Development Order, as amended, pursuant to Section 380.06, Florida Statutes.

5. The proposed development is not in an Area of Critical State Concern as designated pursuant to Section 380.05, Florida Statutes.

6. These proceedings have been duly conducted pursuant to applicable law and regulations.

7. Phase I of the development remains vested pursuant to Subsection 163.3167(8), Florida Statutes and Phase II also remains vested, subject to the requirements of Section C.3. of the Development Order (Transportation), as amended by Resolution No. 97-98.

C. Having made the above findings of fact and above conclusions of law, it is ORDERED that the Meadow Pointe Development Order is hereby amended as follows:

1. Map H1 of Resolution No. 90-32 is hereby modified to eliminate County Line Road east of the North-South road.

2. Section C.3 of Resolution No. 90-32 is hereby amended to add the following new Subsection (h):

(h) The owner/developer shall extend a subdivision local road, with no individual lot access, to the east property line.

3. Based on the clear and convincing evidence submitted to and considered by the Board of County Commissioners, the amendments approved hereby do not constitute a substantial deviation and therefore do not require further Development of Regional Impact Review pursuant to Subsection 380.06(19), Florida Statutes.

4. The County Attorney of Pasco County is hereby directed to render certified copies of this Order to the Developer, the Department of Community Affairs, Tampa Bay Regional Planning Council, and upon attorneys of record in these proceedings.

5. This Order shall be deemed rendered upon transmittal of copies of this Order to the recipients stated in paragraph 4 above.

6. The Developer shall record a notice of adoption of this Order as required pursuant to Chapter 380 and shall furnish the County Attorney a copy of the recorded notice.

7. This Resolution shall take effect immediately upon its adoption.

DONE AND RESOLVED THIS 10th DAY OF February, 1998.

(SEAL)
ATTEST:

By: Donalee Schmitt D.C.
JED PITTMAN, CLERK

BOARD OF COUNTY COMMISSIONERS
OF PASCO COUNTY, FLORIDA

Sylvia Young
SYLVIA YOUNG, CHAIRMAN

APPROVED AS TO LEGAL FORM AND CONTENT
Office of the County Attorney

APPROVED
FEB 10 1998

By: _____
Attorney

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